

fees allegation appearing at page 6, lines 2-3 of the FAC.

The Court **GRANTS** Defendant's motion to strike as to the punitive damages allegation appearing at page 6, lines 3-4 of the FAC, with leave to amend.

Plaintiff may file and serve a second amended complaint within 20 days of notice of entry of this order.

11. 9:00 AM CASE NUMBER: C25-00437
CASE NAME: RYLAND BROOKS VS. DOES 1 TO 100, INCLUSIVE
***HEARING ON MINOR'S COMPROMISE RE: RYLAND BROOKS**
FILED BY: BROOKS, RYLAND

TENTATIVE RULING:

Summary

Petitioner Charlotte Brook's Petition for Approval of Compromise of Minor Ryland Brooks ("Minor") Claim is **granted**, as set forth below. No appearance is required at the hearing on March 18, 2026.

Background

On December 18, 2025, Petitioner Charlotte Brooks, parent and guardian *ad litem* for her son, Ryan Brooks (DOB 2/11/2012), filed this Petition through counsel Brian D. Sudano to compromise the claim that Minor had against a substitute teacher, Ms. Thomas, who works for the Defendant Brentwood Unified School District, related to an accident that occurred on January 17, 2024 at Bristow Middle School. In that incident, Minor sustained injuries including a scratch to his face when Ms. Thomas attempted to remove Minor's cell phone from him. Petitioner represents that Minor has received treatment and has fully recovered and there are no permanent injuries. The Defendants collectively offered settlement in the amount of \$5,000, of which \$3,132.10 is to be paid to Petitioner behalf of Minor. The deduction of \$1867.90 represents a deduction from the settlement to satisfy attorney's fees and costs incurred in reaching this compromise. Petitioner prepared a proposed order, which the Court will execute.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on December 18, 2025. No appearance is required at the hearing on March 18, 2026.

12. 9:00 AM CASE NUMBER: C25-00629
CASE NAME: THELMA ELLENBERGER VS. DELTA DENTAL
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**
FILED BY: DELTA DENTAL

TENTATIVE RULING:

Summary

Defendant Delta Dental's ("Delta") Motion to Quash Service of Summons and Complaint initiated by

Plaintiff Thelma Ellenberger is **granted**.

Background

In this case, Plaintiff Thelma Ellenberger ("Plaintiff") alleges dental malpractice against Delta and Defendant Western Dental. She alleges that Defendant improperly placed a dental implant into her mouth on December 27, 2023, which is crooked and causes pain, discomfort and suffering.

On November 26, 2026, Delta filed a Motion to Quash Service of Summons and a Request for Dismissal. The Motion is supported by Notice, Amended Notice, a Memorandum of Points and Authorities, the Declaration of Warren Hodges, the Declaration of Jaudine Delute, and a Request for Judicial Notice.

Delta claims that under Cal. Code of Civ. Proc § 416.10, summons must be served on the agent for service of process, who, in Delta's case, is (1) the person designated as agent for service of process or, in the absence thereof, the Secretary of the State of California, (2) the president, chief executive officer or other head of the corporation or other entity, a vice president, secretary or assistant secretary, treasurer or assistant treasurer, a controller or chief financial officer general manager, or person authorized to receive service. (Code Civ. Proc., § 416.10, subds. (a), (b).). Delta asserts that it was improperly served by a process server who left the package with a representative of the building lessor, Jaudine Delute, who is not an agent for service of process for Delta.

On December 9, 2025, Plaintiff filed an opposition to the Motion. However, the opposition does not set forth any legal analysis, or argument in opposition of the Motion, and fails to contest any of the material facts alleged in the Motion. Plaintiff simply requested additional time to properly serve Delta.

On March 11, 2026, Delta filed a Reply Brief, asserting that Plaintiff did not properly oppose the motion.

Delta's Request for Judicial Notice is granted without opposition.

Analyses

Self-Represented Litigant

The Court is aware that Plaintiff is proceeding without an attorney in her lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural

rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, “[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.’ [Citation.] When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.’” *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

Non-Opposition

The legal authorities recognize that a party’s failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to oppose this Motion to Quash with legal authorities, Plaintiff concedes all the contentions and arguments in the moving papers.

California courts recognize that a party’s failure to file a proper opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Here, Plaintiff does not file a Memorandum of Points and Authorities contesting any of the legal authorities cited by Delta. Her opposition consists of her declaration, which does not contest any of the factual statements and legal arguments asserted by Delta. Indeed, her declaration states, “I request the court to allow me time to properly serve in the manner required by the defendants. I seek legal help and to the best of our knowledge appeared was the person to serve the documents.”

Held to the standard of a practitioner before the Court, Plaintiff’s admission of improper service is sufficient to grant Delta’s Motion to Quash Summons and Complaint.

Ruling

1. Delta’s Motion to Quash Summons and Complaint is **granted**.
2. The Court will execute the proposed order lodged by Delta on November 26, 2025, and will attach a copy of this tentative ruling.